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Study Notes

The Aircraft Act, 1934

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INTRODUCTION

- The **Indian Airships Act of 1911** was the country's initial legislation in aviation sector. It was subsequently replaced by the Aircraft Act of 1934, which became the key legal framework for aviation.
- The **Aircraft Amendment Bill of 2020** seeks to introduce necessary modifications to this Act.
- The Aircraft Act ("the Act") aims to enhance regulations related to the:
 - ✓ manufacturing,
 - ✓ possession,
 - ✓ use,
 - ✓ operation,
 - ✓ sale,
 - ✓ import, and export of aircraft.
- The Act **grants the government authority to establish rules and laws governing civil aviation in India**, covering aspects like aircraft maintenance, airworthiness, registration, flight procedures, safety, and investigative procedures in case of incidents.
- In other words, it is an Act to make better provision for the control of the manufacture, possession, use, operation, sale, import and export of aircraft.
- The Act **extends to the whole of India and applies to:**
 - ✓ *citizens of India* wherever they may be;
 - ✓ *to and to the persons on aircraft registered in India* wherever they may be;
 - ✓ *to and to the persons on aircraft registered outside India but for the time being in or over India;* and
 - ✓ *to an aircraft operated by a person who is not a citizen of India but has his principal place of business or permanent residence in India.*

SOME IMPORTANT DEFINITIONS SECTION 2

- Section 2 (1) "**aircraft**" means any machine which can derive support in the atmosphere from reactions of the air, other than reactions of the air against the earth's surface and includes balloons whether fixed or free, airships, kites, gliders and flying machines;
- Section 2 (2) "**aerodrome**" means any definite or limited ground or water area intended to be used, either wholly or in part, for the landing or departure of aircraft, and includes all buildings, sheds, vessels, piers and other structures thereon or appertaining thereto;
- Section 2 (2A) "**aerodrome reference point**", in relation to any aerodrome, means a designated point established in the horizontal plane at or near the geometric center of that part of the aerodrome reserved for the departure or landing of aircraft;
- Section 2 (3) "**import**" means bringing into India; and
- Section 2 (4) "**export**" means taking out of India.



POWER OF CENTRAL GOVERNMENT TO EXEMPT CERTAIN AIRCRAFT SECTION 2

- The **Central Government can exempt** specific aircraft or individuals from certain provisions of this Act through a notification in the Official Gazette.
- Alternatively, it can specify that these provisions will apply with specified modifications.

POWER OF CENTRAL GOVERNMENT TO MAKE RULES TO IMPLEMENT THE CONVENTION OF 1944 SECTION 4

- The **Central Government can create rules**, subject to Section 14, by issuing a notification in the Official Gazette.
- These rules are **essential for implementing the Convention related to International Civil Aviation, signed in Chicago on December 7, 1944**, along with any annexes related to international standards and recommended practices, as amended periodically.

DIRECTORATE GENERAL OF CIVIL AVIATION SECTION 4A

- The **Central Government may constitute** the Directorate General of Civil Aviation, which shall **be headed by an officer designated as** the Director General of Civil Aviation to be appointed in this behalf by the Central Government.
- The Directorate General of Civil Aviation shall **be responsible for carrying out** the safety, oversight, and regulatory functions in respect of matters specified in this Act or the rules made thereunder.
- The **administration of the Directorate General of Civil Aviation shall vest** in the Director General of Civil Aviation.

BUREAU OF CIVIL AVIATION SECURITY SECTION 4B

- The **Central Government may constitute Bureau of Civil Aviation Security**, which shall be **headed by an officer designated as** the Director General of Bureau of Civil Aviation Security to be appointed in this behalf by the Central Government.
- The Bureau of Civil Aviation Security shall **be responsible for carrying out** the regulatory and oversight functions in respect of matters relating to civil aviation security.
- The **administration of the Bureau of Civil Aviation Security shall vest in** the Director General of Bureau of Civil Aviation Security.

AIRCRAFT ACCIDENTS INVESTIGATION BUREAU SECTION 4C

- The **Central Government may constitute the Aircraft Accidents Investigation Bureau**, which shall be **headed by an officer designated as** the Director General of Aircraft Accidents Investigation Bureau to be appointed in this behalf by the Central Government.
- The **Aircraft Accidents Investigation Bureau shall be responsible for** carrying out the functions in respect of matters relating to investigation of aircraft accidents or incidents specified in this Act or the rules made thereunder.
- The **administration of the Aircraft Accidents Investigation Bureau shall vest in** the Director General of Aircraft Accidents Investigation Bureau.

SUPERINTENDENCE OF CENTRAL GOVERNMENT SECTION 4D

- The **Central Government has the authority to oversee and issue directives to:**
 - ✓ the Directorate General of Civil Aviation,
 - ✓ the Bureau of Civil Aviation Security, and
 - ✓ the Aircraft Accidents Investigation Bureau.
- This authority extends to matters covered under sub-section (2) of sections 4A, 4B, and 4C, respectively, if it deems it necessary and beneficial in the public interest.

POWER OF CENTRAL GOVERNMENT TO MAKE RULES SECTION 5

- The **Central Government has the authority**, subject to section 14, **to make rules pertaining to** the control of manufacturing, possession, use, operation, sale, import, or export of aircraft, including measures for ensuring the safety of aircraft operations.
- The rules established under this Act **may include provisions for:**
 - ✓ *Determining the authorities responsible for exercising powers granted by or under this Act.*
 - ✓ *Regulating air transport services and prohibiting the use of aircraft in such services unless authorized by a license permitting the establishment of the service.*

- ✓ *Economically regulating civil aviation and air transport services*, which includes approving, disapproving, or revising the tariffs of air transport service operators (excluding tariffs referred to in section 13(a) of the Airports Economics Regulatory Authority of India Act, 2008). These rules also cover the designation of officers or authorities with the power to act in this capacity, the procedures they must follow, the factors they should consider, the process for appealing their decisions to the Central Government, and all other related matters concerning these tariffs.

"Tariff" includes fares, rates, valuation charges and other charges for air transport of passengers or goods, the rules, regulations, practices or services affecting such fares, rates, valuation charges and other charges and the rates, terms and conditions of commission payable to passenger or cargo sales agents.

- ✓ *Specifying the information* required from applicants for, or holders of, a license authorizing the establishment of an air transport service, to be submitted to the relevant authorities.
- ✓ *Licensing, inspecting, and regulating aerodromes*, including conditions for their maintenance and the control of unlicensed aerodromes.
- ✓ *Determining fees* that may be charged at aerodromes not covered by the Airports Authority of India Act, 1994.
- ✓ *Controlling* the manufacturing, repair, and maintenance of aircraft and places involved in these activities.
- ✓ *Registering and marking* aircraft.
- ✓ *Defining conditions* for aircraft operations, passenger, mail, and cargo carriage, and industrial aircraft use. It may also specify the certificates, licenses, or documents required on aircraft.
- ✓ *Inspecting aircraft* to enforce the Act's provisions and rules, including the facilities for such inspections.
- ✓ *Licensing individuals* engaged in aircraft operation, manufacturing, repair, maintenance, air traffic control, and the certification and regulation of communication, navigation, surveillance, or air traffic management facilities.
- ✓ *Implementing measures* to protect civil aviation against unlawful interference. the regulation of air navigation services, that is, aeronautical information services, aeronautical charting and cartography services, aeronautical meteorological services, search and rescue services, procedure for air navigation services and aircraft operations other than those referred to in clause (gb) and any other matter relating to air navigation services;"
- ✓ *Establishing* air-routes, conditions for aircraft entry or departure from India, flying over India, and designated landing places.
- ✓ *Regulating or prohibiting* aircraft flight over specific areas, times, or under certain conditions.
- ✓ *Supervising* air-route beacons, aerodrome lights, and lights near aerodromes or air-routes.

- ✓ *Defining* the installation and maintenance of lights on private property near aerodromes or air-routes, including funding, supervision, and access rights for installation and maintenance.
- ✓ *Specifying* signals and signaling apparatus for aircraft communication.
- ✓ *Regulating* the carriage of specified articles or substances in aircraft.
- ✓ *Establishing* safety measures and required equipment for aircraft operations.
- ✓ *Issuing and maintaining* log-books.
- ✓ *Defining* procedures and conditions for issuing or renewing licenses, certificates, and log-books, including examinations, endorsements, cancellations, suspensions, or surrenders.
- ✓ *Setting fees* related to inspections, examinations, tests, certificates, or licenses issued or renewed under this Act.
- ✓ *Recognizing* licenses and certificates issued outside India concerning aircraft or qualifications of individuals involved in aircraft operation, manufacturing, repair, or maintenance.
- ✓ *Prohibiting* animal slaughtering, flaying, and depositing of waste and obnoxious substances within ten kilometers from the aerodrome reference point.
- ✓ *Safety oversight and regulatory functions*;
- ✓ *Regulatory and oversight functions* in respect of matters relating to civil aviation security; and
- ✓ *Covering any matters incidental or subsidiary* to those mentioned in this subsection.

POWER TO ISSUE DIRECTIONS SECTION 5A

- The **Director General of Civil Aviation or another officer authorized by the Central Government may issue orders, consistent with the Act and its rules, regarding certain matters specified in** clauses "(gc), (gd), (h), (i), (m), (qa) and (qb)" of subsection (2) of section 5.
- These **orders apply to** individuals using aerodromes or involved in aircraft operations, air traffic control, aerodrome maintenance and operation, communication, navigation, surveillance, air traffic management facilities, and security against unlawful interference. Such orders may be issued when it is deemed necessary for India's security or to ensure aircraft operations' safety.
- The **Director General of the Bureau of Civil Aviation Security or another officer authorized by the Central Government may issue orders**, in alignment with the Act and its rules, concerning certain matters specified in clauses (e), (f), (gc), and (qc) of subsection (2) of section 5.
- The above **orders apply to individuals using** aerodromes or involved in aircraft operations, air traffic control, aerodrome maintenance and operation, and safeguarding civil aviation **against unlawful interference**.
- Such orders **may be issued when it is deemed necessary for India's security or to ensure the security of civil aviation operations**.

- Additionally, **if necessary, in the public interest, the Central Government may review any order issued** as mentioned above upon receipt of a representation or otherwise.
- The Central Government may direct the Director General of Civil Aviation or the Director General of the Bureau of Civil Aviation Security to rescind or modify such orders.

POWER OF CENTRAL GOVERNMENT TO MAKE ORDERS IN EMERGENCY SECTION 6

- If the Central Government believes that, **in the interest of public safety or tranquility, it is expedient to issue any or all of the following orders:**
 - ✓ *Cancel or suspend*, either entirely or with specified conditions, any licenses or certificates issued under this Act.
 - Any person who incurs direct injury or loss shall receive compensation determined by an authority appointed by the Central Government.
 - ✓ *Prohibit, absolutely or with specified conditions*, or regulate the flight of all or any aircraft or a particular class of aircraft over all or any part of India.
 - ✓ *Prohibit, either absolutely, or conditionally, or regulate* the erection, maintenance, or use of any aerodrome, aircraft factory, flying school or club, or any location where aircraft are manufactured, repaired, or stored, or any specific class or category of these.
 - Any person who incurs direct injury or loss shall receive compensation determined by an authority appointed by the Central Government.
 - ✓ *Direct* that any aircraft or class of aircraft or any aerodrome, aircraft factory, flying-school or club, or location where aircraft are manufactured, repaired, or stored, along with any machinery, equipment, materials, or items used for operating, manufacturing, repairing, or maintaining aircraft, should be handed over, either immediately or within a specified period, to the authority and in the manner specified in the order, for use by the government for public service.
- **Anyone who knowingly disobeys, fails to comply with, or engages in actions contrary to an order issued shall be punishable with** imprisonment or a term which may extend to **three years, or with fine, or with both**. The Court by which he is convicted may direct that the aircraft or thing (if any) in respect of which the offence has been committed, or any part of such thing, shall **be forfeited to Government**.

POWER OF CENTRAL GOVERNMENT TO MAKE RULES FOR INVESTIGATION OF ACCIDENTS SECTION 7

- Subject to the provisions of section 14, the Central Government may make rules concerning the **investigation of accidents or incidents occurring during navigation:**
 - ✓ *in or over India of any aircraft, or*
 - ✓ *anywhere of aircraft registered in India.*
- Without prejudice to the generality of the foregoing power, **such rules may:**
 - ✓ *require notice to be given* of any accident or incident in such manner and by such person as may be prescribed;

- ✓ *apply for the purposes* of such investigation, either with or without modification, the provisions of any law for the time being in force relating to the investigation of accidents;
- ✓ *prohibit pending investigation* access to or interference with aircraft to which an accident or incident has occurred, and authorise any person so far as may be necessary for the purposes of an investigation to have access to, examine, remove, take measures for the preservation of, or otherwise deal with, any such aircraft; and
- ✓ *authorize or require the* cancellation, suspension, endorsement or surrender of any licence or certificate granted or recognised under this Act when it appears on an investigation that the licence ought to be so dealt with, and provide for the production of any such licence for such purpose.

POWER TO DETAIN AIRCRAFT SECTION 8

- Any authority authorised in this behalf by the Central Government **may detain any aircraft**, if in the opinion of such authority:
 - ✓ having regard to the *nature of an intended* flight, the flight of such aircraft would involve danger to persons in the aircraft or to any other persons or property; or
 - ✓ such detention is *necessary to secure compliance with* any of the provisions of this Act or the rules applicable to such aircraft; or such detention is necessary to prevent a contravention of any rule made under clause (h) or clause (i) of section 5 (2) or to implement any order made by any Court.

POWER OF CENTRAL GOVERNMENT TO MAKE RULES FOR PROTECTING THE PUBLIC HEALTH SECTION 8A

- The Central Government, subject to Section 14, can establish rules, through official publication, **aimed at preventing public health risks associated with infectious diseases from spreading via arriving or stationed aircraft at any aerodrome**. These rules can encompass various aspects, similar to those specified in sub-clauses (i) to (viii) of clause (p) under subsection (1) of Section 6 of the Indian Ports Act, 1908, which relate to vessels and ports.

EMERGENCY POWERS FOR PROTECTING THE PUBLIC HEALTH SECTION 8B

- If the Central Government believes that **India or any part thereof is visited by or threatened with an outbreak of any dangerous epidemic disease**, and if the *existing legal provisions are inadequate to prevent public health risks caused by the introduction or spread of the disease through aircraft*, the Central Government can implement necessary measures to prevent such danger.
- In such situations, the Central Government may, in addition to its powers under Section 8A, **issue temporary rules pertaining to aircraft, passengers, cargo, and**

aerodromes, and will be designed to address the specific requirements of the circumstances.

- ✓ The above made Rules do not require prior publication but can be in force for a **maximum of three months from the date of notification**. The Central Government can extend them for additional periods, **not exceeding three months each, through a special order**.

POWER OF CENTRAL GOVERNMENT TO MAKE RULES FOR SECURING SAFE CUSTODY AND RE-DELIVERY OF UNCLAIMED PROPERTY SECTION 8C

- The Central Government, subject to Section 14, can create rules to **ensure the safe custody and return of property found on an aerodrome or in an aircraft on an aerodrome**. These rules may include provisions for:
 - ✓ *Charging fees* for the return of such property to the rightful owner before its re-delivery.
 - ✓ The *disposition of such property* in cases where it is not re-delivered to the rightful owner within a specified period as defined in the rules.

WRECK AND SALVAGE SECTION 9

- The provisions of Part XIII of the Merchant Shipping Act, 1958, regarding Wreck and Salvage, shall **also be applicable to aircraft over the sea or tidal water, similar to how they apply to ships**.
- **Aircraft owners have the right** to receive reasonable compensation for salvage services provided by their aircraft, akin to ship owners.
- The **Central Government has the authority** to make necessary modifications to these provisions when applied to aircraft.

POWER OF CENTRAL GOVERNMENT TO PROHIBIT OR REGULATE CONSTRUCTION OF BUILDINGS, PLANTING OF TREES, ETC. SECTION 9A

- The Central Government, **in the interest of aircraft safety**, may issue a notification with the following directives:
 - ✓ *no construction or erection* of buildings or structures, and no planting of trees, shall occur within a specified radius, not exceeding twenty kilometers from the aerodrome reference point, as mentioned in the notification. If any building, structure, or tree exists on such land, the owner or person in control must demolish the building or structure or cut the tree within a specified period mentioned in the notification.
 - ✓ *no building or structure* taller than a specified height mentioned in the notification, or no tree that typically grows taller than the specified height, shall be constructed, erected, or planted within a designated radius, not exceeding twenty kilometers from the aerodrome reference point, as specified in the notification. If any building, structure, or tree on such land exceeds the specified height, the owner or person

- in control must reduce the height to not exceed the specified limit within the timeframe mentioned in the notification.
- **In specifying the radius and the height** of any building, structure, or tree the Central Government shall have **regard to**:
 - ✓ the *nature of the aircraft operated* or intended to be operated in the aerodrome; and
 - ✓ the *international standards and recommended practices* governing the operation of aircraft.
 - If a notification has been issued instructing the owner or person in control of a building, structure, or tree **to demolish it, cut it, or reduce its height**, a copy of the notification with this directive shall be:
 - ✓ *delivered to the owner* or person responsible for the building, structure, or tree.
 - ✓ *if it cannot be so delivered or tendered, by delivering or tendering it to any officer of such owner or person or any adult male member of the family* of such owner or person or by affixing a copy thereof on the outer door or on some conspicuous part of the premises in which such owner or person is known to have last resided or carried on business or personally worked for gain; or failing service by these means;
 - ✓ *by post*.

PAYMENT OF COMPENSATION SECTION 9B

- If **any person incurs loss or damage due to a directive** in a notification issued under section 9A (1), they shall **receive compensation**.
- The compensation amount will **be determined following the principles below**:
 - ✓ where the amount of compensation *can be fixed by agreement*, it shall be paid in accordance with such agreement;
 - ✓ where no such agreement can be reached, the *Central Government shall appoint as Arbitrator* a person who is or has been qualified for appointment as a Judge of a High Court;
 - ✓ the Central Government may, in any particular case, *nominate a person having expert knowledge* as to the nature of the loss or damage suffered by the person to be compensated and where such nomination is made, the person to be compensated may also nominate an assessor for the same purpose;
 - ✓ at the commencement of the proceedings before the Arbitrator, *the Central Government and the person to be compensated shall state* what, in their respective opinion, is a fair amount of compensation;
 - ✓ the Arbitrator shall, after hearing the dispute, *make an award determining* the amount of compensation which appears to him to be just and specify the person or persons to whom such compensation shall be paid; and in making the award he shall have regard to the circumstances of each case and:
 - the damage sustained by the person to be compensated in his earnings;

- if in consequence of any direction contained in any notification issued under section 9A (1) the market value of the land immediately after the issue of such notification is diminished, the diminution in such market value;
 - where any building or structure has been demolished or any tree has been cut or the height of any building, structure or tree has been reduced in pursuance of any direction, the damage sustained by the person to be compensated in consequence of such demolition, cutting or reduction and the expenses incurred by such person for such demolition, cutting or reduction;
 - if the person to be compensated is compelled to change his residence or place of business, the reasonable expenses, if any, that may have to be incurred by him incidental to such change;
- ✓ where there is any dispute as to the person or persons who are entitled to the compensation, the Arbitrator shall decide such dispute and if the arbitrator finds that more persons than one are entitled to compensation, he shall apportion the amount thereof amongst such persons;
- ✓ nothing in the Arbitration Act, 1940 shall apply to arbitrations under this section, and
- every award made by the Arbitrator shall also state the amount of costs incurred in the proceedings before it and by what persons and in what proportions they are to be paid.

APPEALS FROM AWARDS IN RESPECT OF COMPENSATION SECTION 9C

- An appeal against the compensation award of the arbitrator made under section 9B may be filed with the High Court within thirty days from the date of the award.
- However, the High Court may consider appeals filed after this period if it finds sufficient cause for the delay.

PENALTIES FOR CONTRAVENTION OF SECTION 10, 10(1A), 10(2), 11, 11B & 12

PROVISIONS	PENALTY
Contravention of any of the provisions under section 5(2)(1) shall be punishable with (S. 10)	imprisonment which may extend to two years and shall also be liable to fine which may extend to ten lakh rupees
Contravention of any of the provisions under section 5(2) (qa) shall be punishable with (S. 10 (1A)	imprisonment which may extend to three years, or with fine which may extend to one crore rupees, or with both: cognizable
While making rules under various sections, including Section 5, Section 4, Section 7, Section 8, Section 8A, or Section 8B the Central Government may direct that a breach of it shall be punishable with (S. 10) (2)	imprisonment for a period which may extend to two years, or with fine which may extend to one crore rupees, or with both
Whosoever, wilfully flies any aircraft in such a manner as to cause danger to any person or to any property on land or water or in the air (S. 11)	imprisonment for a term which may extend to two years, or with fine which may extend to one crore rupees, or with both.

Failure to comply with directions issued under section 5A (S. 11A) Failure to comply with directions issued under section 9A (S. 11B)	imprisonment for a term which may extend to two years or with fine which may extend to one crore rupees, or with both
Abetment of offences and attempted offences (S. 12)	Be liable to the punishment provided for the offence

ADJUDICATION OF PENALTIES SECTION 10A

- The Central Government, while creating rules under Section 4, 5, 7, 8, 8A, or Section 8B, can specify **a penalty of up to one crore rupees for the violation of** any rule, provided that no other punishment has been designated elsewhere in the Act or its accompanying rules for that specific violation.
- The Central Government may, **by an order appoint such number of officers not below the rank of** Deputy Secretary to the Government of India or equivalent, as it considers necessary, to be designated officers **for adjudging penalty**.
- Any **person aggrieved by an order may prefer an appeal to an appellate officer** having jurisdiction in the matter who is next higher in rank to the designated officer who has passed such order.
- Every appeal shall **be filed within thirty days** from the date on which the copy of the order made by the designated officer is received by the aggrieved person.
- The appellate officer may, **after giving the parties to the appeal an opportunity** of being heard, **pass such order as he thinks fit, confirming, modifying, or setting aside the order appealed against**.

COMPOSITION OF OFFENCES SECTION 12A

- Offences punishable under sections 10, 11, 11A, 11B, and section 12 **may be compounded either before or after initiating any prosecution**.
- The **compounding can be done by** the Director General of Civil Aviation, Director General of Bureau of Civil Aviation Security, or Director General of Aircraft Accidents Investigation Bureau, as the case may be.
- Offences can be compounded **under the following conditions**:
 - ✓ Offences can be compounded by designated officers *for the first occurrence within five years* from the date of a similar prior offence that was either compounded or resulted in a conviction.
 - ✓ Designated officers' power to compound offences is *subject to the Central Government's direction, control, and supervision*.
 - ✓ *Rules for applying for the compounding of an offence will be determined by the Central Government through notifications in the Official Gazette.*
 - ✓ *If an offence is compounded before the initiation of any prosecution, no further prosecution can be launched against the offender for that particular offence.*
 - ✓ If an offence is compounded after the initiation of a prosecution, the designated officer must inform the court handling the prosecution in writing. Upon receiving

notice of the compounded offence, the person being prosecuted will be discharged.

- ✓ *Compounding an offence under this section will have the same effect as an acquittal of the accused.*

COGNIZANCE OF OFFENCES SECTION 12B

- **No court shall take cognizance of any offence** punishable under this Act, save on a **complaint made by or with the previous sanction in writing by** the Director General of Civil Aviation or Director General of Bureau of Civil Aviation Security or Director General of Aircraft Accidents Investigation Bureau, as the case may be.
- **The complaint shall be made within a period of one year** from the date on which the offence came to the knowledge of the Director General of Civil Aviation or Director General of Bureau of Civil Aviation Security or Director General of Aircraft Accidents Investigation Bureau, as the case may be.
- **No court inferior to that of a Metropolitan Magistrate or a Magistrate of the first class** shall try the offences under this Act.

POWER OF COURT TO ORDER FORFEITURE SECTION 13

- If a person is convicted of an offence under section 10(1) or under any rule created under section 5(2)(i), the convicting court **may order the forfeiture of** the aircraft, article, or substance involved in the offence to the Government.

USE OF PATENTED INVENTION ON AIRCRAFT NOT REQUIRED IN INDIA SECTION 15

- The provisions of section 42 of the Indian Patents and Designs Act, 1911, **shall be applicable to the utilization of an invention on any aircraft not registered in India, similar to how they apply to the utilization of an invention in a foreign vessel.**